

STUDENT RECORDS

This policy establishes guidelines for the responsibilities related to the maintenance and disposition of student records.

A. Responsibility

1. Accurate and complete Education and Scholastic Records ("Records") shall be maintained for each student who attends Loudoun County Public Schools (LCPS). Records are created for any students who officially register with LCPS. The record shall be maintained for each year or any part of a year that the student attends LCPS.

2. For students who change schools within LCPS or transfer into LCPS, records from other schools the student attended shall be transferred to the LCPS school of record with the appropriate notation of the school(s) from which these records were received. Non-LCPS records from previously attended school(s) must contain all appropriate notations and materials.

3. Principals, or their designees, are responsible for maintaining and protecting records at the school and are designated as custodians of the records.

4. Records shall be kept up-to-date and made available to persons in accordance with applicable federal and state law and LCPS policy. Record maintenance, retention, disposition, and destruction shall be governed by this policy and the applicable Library of Virginia Records Retention and Disposition Schedules GS-21, County and Municipal Governments, Public School Records (hereafter GS-21).

5. Disclosure of information from student education records shall be as authorized by and in accordance with Policy [8640](#).

6. The Superintendent, and/or their designee(s), is responsible for the collection of data, record maintenance and security, access to, and use of records, confidentiality of personally identifiable information, dissemination of information from records, and destruction of records, including the destruction of personally identifiable information regarding a student with a disability at the request of the parents. The superintendent also provides for notification of all school division personnel of policy and procedures for management of education records and notification of parents and students of their rights regarding student records, including the right to obtain, upon request, a copy of this policy.

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B. Definition of Records. Records include “scholastic records” as defined in the Code of Virginia, and may also be referred to as “cumulative records” with varying subsets of records. Under federal law, “education records” are those records directly

related to a student and maintained by a school division or by an entity acting for the school division. These include, but are not limited to, documentation pertinent to the educational growth and development of students as they progress through school, student disciplinary records, achievement and test results, cumulative health records, reports of assessments for eligibility for special education services, and Individualized Education Programs. Such records may be maintained in any way, including, but not limited to, handwriting, print, computer media, video or audio tape, film, microfilm, and microfiche.

C. Location

1. The student’s records, exclusive of those maintained electronically, shall be kept at the school where the student currently attends or last attended. All records should be kept in a secured location, properly supervised, and protected. Access to the records is only permitted by authorized school officials as defined in Policy 8640. School officials may store legacy records in a central facility and such records may be microfilmed or digitized.

2. Information that comprises a confidential record must be clearly indicated in the cumulative record. Legal, Special Education, or other confidential information should be secured in a separate LCPS secure location.

D. Maintenance and Disposition of Student Records

1. Records, including attendance, health, grades, levels of achievement, and the record of disclosure shall be managed and retained in accordance with the Virginia Public Records Act, Va. Code § 42.1-76 et seq. and the applicable Record Management retention schedules issued by the Library of Virginia.

2. School Officials responsible for maintaining records shall review the records of former students and dispose of records in compliance with the Virginia Public Records Act, Va. Code § 42.1-76 et seq. and the applicable Record Management retention schedules issued by the Library of Virginia

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E. Confidentiality of HIV and Drug and Alcohol Treatment Records. Loudoun County Public Schools complies with the confidentiality requirements of Va. Code § 32.1-36.1 providing for the confidentiality of records related to any test for Human Immunodeficiency Virus (HIV). In addition, the school division maintains confidentiality of drug and alcohol treatment records as required by federal and state law.

F. Military Recruiters and Institutions of Higher Learning. Loudoun County Public Schools provides, on request made by military recruiters or an institution of higher education, access to secondary school students' names, addresses and telephone listings unless a parent or eligible student has submitted a written request that the student's name, address and telephone listing not be released without the prior written consent of the parent or eligible student. The school division notifies parents of the option to make a request and complies with any request. The school division provides military recruiters the same access to secondary school students as is provided generally to post-secondary educational institutions or to prospective employers of those students.

G. Disclosure of Information Relating to Home Instructed Students. Loudoun County Public Schools shall not disclose to the Department of Education or any other person or entity outside of the local school division information that is provided by a parent or student to satisfy the requirements of Policy 8080 Home Instruction (Home Schooling) or subdivision B 1 of Va. Code § 22.1-254. However, LCPS may disclose, with the written consent of a student's parent, such information to the extent provided by the parent's consent. Nothing in this policy prohibits the superintendent from notifying the Superintendent of Public Instruction of the number of students in the school division receiving home instruction.

[Former Policies 8-71 and 8-72]

Adopted: 6/12/79

Revised: 6/22/93, 4/25/06, 11/29/11, 9/26/17

Current Revision: 4/25/23

Legal Refs.: [20 U.S.C. §1232g](#), [20 U.S.C. §7908](#), [42 U.S.C. § 290dd-2](#), [34 C.F.R. Part 99](#)
Code of Virginia, 1950, as amended, §§ [2.2-3704](#), [2.2-3705.4](#), [2.2-3804](#), [16.1-260](#),
[16.1-305.1](#), [16.1-305.2](#), [22.1-254.1](#), [22.1-279.3:2](#), [22.1-287](#), [22.1-287.01](#), [22.1-287.02](#),
[22.1-287.1](#), [22.1-288](#), [22.1-288.1](#), [22.1-288.2](#), [22.1-289](#), [23.1-405](#), [32.1-36.1](#), [42.1-76](#) et
seq, [64.2-2003](#).

Cross Ref: Policy [8640](#), Disclosure of Personally Identifiable Information
Policy [8080](#), Home Instruction (Home Schooling)